



Notification Waiver Determination

BGIS – Safe Fire Electrical

Acquisition	BGIS Pty Ltd (BGIS) applied for a notification waiver in respect of its (or its nominated wholly owned subsidiary's) proposed acquisition of the business and assets of Fire Systems (S.A.) Pty Ltd (trading as Safe Fire Electrical), as described in the transaction documents provided as part of the application (the Acquisition).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition is not required to be notified.
Date of determination	27 May 2026

Parties to the Acquisition	The acquirer, BGIS, provides facilities management and technical services across Australia, including maintenance and operation of buildings and infrastructure. The target, Safe Fire Electrical, is a South Australian business specialising in fire protection services, including the design, installation, maintenance, testing and certification of fire systems such as alarms, sprinklers, hydrants and extinguishers. It services commercial and industrial customers and derives revenue from both installation and recurring maintenance work. While both BGIS and Safe Fire Electrical supply fire protection services in Australia, BGIS does not directly supply these services in South Australia, where Safe Fire Electrical operates. The Acquisition involves a vertical relationship by enabling BGIS, as a supplier of facilities management services, to include Safe Fire Electrical's fire protection services in South Australia within its broader suite of services.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the ACCC) has considered the information provided with the notification waiver application and had regard to the factors in section 51ABV(2)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). Based on the information provided in the application, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition. In particular: - there is no geographic overlap between BGIS and Safe Fire Electrical in the supply of fire protection services in South Australia - there are alternative suppliers of fire protection services in Adelaide and South Australia more broadly

	c. there is a low risk of foreclosure or other concerning vertical effects resulting from exclusionary conduct post-acquisition. The ACCC has also had regard to the likelihood that, if the Acquisition were put into effect, the notification thresholds determined under section 51ABP(1) of the Act would apply. While the ACCC considers that the notification thresholds are likely to be met, given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's interim guidance on notification waivers and merger assessment guidelines.
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**Determination made by Commissioner Williams pursuant to a delegation under section 25(1)
of the Act**